

**INSTRUCTIONS FOR COMPLETING
DBPR ABT – 6004
DIVISION OF ALCOHOLIC BEVERAGES AND TOBACCO
APPLICATION FOR CHANGE TO A LICENSED LEGAL ENTITY**

If you have any questions or need assistance in completing this application, please contact the Division of Alcoholic Beverages & Tobacco's (AB&T) local district office. Please submit your completed application and required fee(s) to your local district office. This application may be submitted by mail, through appointment, or it can be dropped off. A District Office Address and Contact Information Sheet can be found on AB&T's web site at the link provided below:

[Local ABT District Licensing Offices](#)

GENERAL INSTRUCTIONS

Applications for changes to related parties and/or licensed legal entities are filed with the Division of Alcoholic Beverages and Tobacco. Please complete all information. All questions must be answered fully and truthfully. You must provide an original application with original signatures. If you are required to submit any supporting documentation, such as the items listed below, a copy of the document is acceptable. Once submitted, your application cannot be returned to you. We will notify you in writing if your application has any errors or omissions and you will be given the opportunity to submit the corrected or required document.

Note: When applicable, you must submit a legible and executed copy of the following: Right of Occupancy, lease, or deed (must be in the name of the entity applying for the license), Franchise Agreement, Management Contract, Concession Agreement, and any agreement which requires a percentage payment from the business operation, Certified Copy of Death Certificate, Letters of Administration, Certificate of Title, Certified Copy of all Court Orders pertaining to the alcoholic beverage license.

Important Note: If this application is being made as a result of a merger, the Division's licensee of record for the affected license(s) must have been the surviving entity. If the surviving entity is not the Division's licensee of record, a transfer of the license is required and you cannot use this form. If a transfer is required, please go to [Renew & Manage My License](#) and **complete the Application for Transfer of Ownership ABT-6002.**

Contact Person

All communications regarding your application and invoices for payments of initial and renewal fees will be sent to the applicant/licensee at the mailing or email address provided. However, if you would like for us to communicate with someone other than the applicant regarding your application, please provide the name and contact information for that person in the "License Information" section. Your named contact person will be permitted to make changes to the application paperwork on your behalf (except Related Party Personal Information Sheet) and we will communicate directly with them regarding any application issues or deficiencies, and you will not be copied by the division with the correspondence. Once the application is approved, all invoices and any subsequent communications will be sent to the mailing address of the licensee.

APPLICATION REQUIREMENTS

Department of Revenue Clearance

Department of Revenue clearance is required on applications for all new, transfer, change of location, and applications which change the licensee's name. Applications must be submitted within 90 days of receiving this approval. The address for the office serving your area of interest can be found at [Local ABT Licensing Offices](#)

Affidavit of Applicant

Read and sign in the presence of a notary. The affidavit must be signed by the individual applicant, each partner of a general partnership, a general partner of a general partnership of a limited partnership, a managing member, manager, or officer of a limited liability company, each partner of a limited liability partnership, or one of the officers of a corporate applicant.

Fingerprints

Note: If you are a current licensee with the Florida Division of Alcoholic Beverages & Tobacco you are not required to submit a new set of fingerprints with your application unless you have been arrested since your prior submission of fingerprints to the division. If you are not a current licensee but have been fingerprinted for this division in the past three (3) years, and you have not been arrested since that time, you are not required to submit new fingerprints unless the prior application was withdrawn or non-consummated. Applicants whose fingerprints are returned to the division as illegible will be required to submit a second set of fingerprints.

Fingerprints must be submitted by each sole proprietor; officers, directors, individual share holders owning more than ½ of 1 percent of stock in non-public corporations; general partners of general partnerships; general partners of a limited partnership; officers, managing members or managers of a limited liability company; partners of a limited liability partnership, and persons directly interested and receiving financial proceeds from the business.

Applicants must use a Livescan vendor that has been approved by the Florida Department of Law Enforcement to submit their fingerprints to the department. Costs associated with the fingerprint process will be collected by the vendor. Vendor options and contact information can be viewed at Livescan Device Vendors List ([Livescan Device Vendors List](#)). Please ensure that the Originating Agency Identification (ORI) number for the Division of Alcoholic Beverages and Tobacco is provided to the vendor when you submit your fingerprints. The ORI number is FL920150Z. If you do not provide the ORI number, or if you provide an incorrect ORI number to the vendor, the Department of Business and Professional Regulation will not receive your fingerprint results.

Out of State Alcoholic Beverage and Tobacco Applicants only:

Your fingerprint card can be obtained from the Department of Business and Professional Regulation by contacting the Division of Alcoholic Beverages and Tobacco at 850.488.8284, or one of the division's district offices. A listing of the district offices on the web can be found at

[Local ABT District Licensing Offices](#)

1. Go to the FDLE [Livescan Device Vendors List](#) and choose a Livescan vendor that is certified as "hard card scanning capable". These vendors have the ability to process fingerprints through additional methods, including the use of hard copy fingerprint cards. If the vendor requests that you provide a fingerprint card, you may call the Department of Business and Professional Regulation at 850.487.1395 to obtain one. When requesting a card, please specify the profession for which you are seeking licensure.
2. If you are unable to obtain fingerprinting services through an FDLE approved "hard card scanning capable" vendor, please contact the Department of Business and Professional Regulation by calling 850.487.1395 to request the alternative procedure for fingerprint processing and fingerprint card. Each fingerprint card has a specific ORI code identifying the profession. When requesting a card, please specify the profession for which you are seeking licensure. Once the fingerprint card is received, you may then go to a local law enforcement office in your area to have your fingerprints rolled onto the card. Other information will be completed at the local law enforcement agency. For all programs, the completed card must be mailed to: **FLDBPR, Florida Fingerprinting Program, Prints Inc., 119 East Park Avenue, Tallahassee, FL 32301**, where the fingerprint card will be scanned. Prior to mailing your fingerprint card, you must complete the steps listed at <https://pearson.ibtfingerprint.com/> in order to register and make an advance payment of \$50.00 plus Florida Sales Tax. Do not send any money to Prints Inc. Out of State Alcoholic Beverage and Tobacco Applicants only: Your fingerprint card can be obtained from the Department of Business and Professional Regulation by contacting the Division of Alcoholic Beverages and Tobacco at 850.488.8284, or one of the division's district offices. A listing of the district offices can be found here.. Once the fingerprint card is received, you may then go to a local law enforcement officer in your area to have your fingerprints rolled onto the card. Information specific to the Division of Alcoholic Beverages and Tobacco will be preprinted on the fingerprint card. Other information will be completed at the local law enforcement agency. The instructions for submitting your fingerprint card are outlined above.

Social Security Number

Under the Federal Privacy Act, disclosure of Social Security numbers is voluntary unless a Federal statute specifically requires it or allows states to collect the number. In this instance, disclosure of social security numbers is mandatory pursuant to Title 42 United States Code, Sections 653 and 654; and sections 409.2577, 409.2598, and 559.79, Florida Statutes. Social Security numbers are used to allow efficient screening of applicants and licensees by a Title IV-D child support agency to assure compliance with child support obligations. Social Security numbers must also be recorded on all professional and occupational license applications and are used for licensee identification pursuant to the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (Welfare Reform Act), 104 Pub.L.193, Sec. 317. The State of Florida is authorized to collect the social security number of licensees pursuant to the Social Security Act, 42 U.S.C. 405(c)(2)(C)(I). This information is used to identify licensees for tax administration purposes, and the division will redact the information from any public records request.

Directly/Indirectly Interested Person

A direct interest is created by a person or entity having an interest with the applicant in the business sought to be licensed and, includes but is not limited to:

1. an interest which is created by virtue of the interested party deriving revenue from the sale of alcoholic beverages;
2. a person or entity having the right to receive revenue based on a contractual relationship related to the control of the sale of alcoholic beverages, the terms of which, are contrary to 561.17, Florida Statutes, or 61A-3.017, Florida Administrative Code;
3. a person or entity who has a right to a percentage payment from the proceeds of the business pursuant to a lease;
4. a guarantor on a lease or loan;
5. a co-signer on a lease or loan.

An indirect interest includes, but is not limited to, any person or entity that derives revenue from the license solely through a contractual relationship with the licensee, the substance of which is not related to the control of the sale of alcoholic beverages, or is specifically exempt by statute or rule.

Note: Direct and indirect interests must be disclosed in the "DISCLOSURE OF INTERESTED PARTIES" section of the application.

Registration of Legal Entity

All corporations, domestic or foreign; general partnerships; limited liability companies; limited liability partnerships; and limited partnerships are required to be registered with the Florida Department of State, Division of Corporations. If you have not already registered, you will need to contact the Department of State at (850) 488-9000 or www.sunbiz.org for further information. Your application will be considered incomplete without this active registration.

Related Party Personal Information

This section of the application must be completed by each applicant or person(s) directly connected with the business, unless they are a current licensee. The signature of each person filling out this section of the application must be an original. This will include the sole proprietor, all partners, officers, directors, individual share holders owning more than ½ of 1 percent of stock in non-public corporations, all partners of each general partnership, all general partners of a limited partnership, all managing members or managers of a limited liability company, partners of a limited liability partnership, and persons directly interested and receiving financial proceeds from the business. It is important that each individual discloses any arrests they have had within the past 15 years, even if they were charged, but not formally arrested, and regardless of the disposition.

Copy of Arrest Disposition

If the applicant answers "yes" to any of the criminal background questions asked in this application, provide a copy of the Arrest Disposition to ensure the applicant is qualified, pursuant to Statute and Rule. **Applicable Statutes and Rule: 561.15 & 561.17, Florida Statutes; and 61A-1.017, Florida Administrative Code.**

Moral Character

The applicant is required to meet the moral character standards to have an interest in an alcoholic beverage license. Any person failing to meet **those standards** shall be required to submit mitigation under the moral character rule in order for the division to determine if the person is qualified. A copy of the rule and requirements can be found at [Moral Character](#).

Federal Employer's Identification Number (FEIN)

All licensees who pay wages to one or more employees must have a Federal Employer's Identification Number. Contact the Internal Revenue Service (IRS) at 1-800-829-3676 and request Form #SS4.

Surety Bond

Surety bonds are required on all new applications for manufacturers, wholesale distributors of alcoholic beverages, wholesale distributors of cigarettes, and other tobacco products. A surety bond or a rider to the original bond must be submitted on any change of business name, change of location or change of ownership name application by the aforementioned. You may wish to have an auditor review your surety bond prior to submitting this application. Contact the division's Auditing Office serving your area of interest for further information. A list of the Auditing offices can be found at:

[Audit District Offices.](#)

APPLICATION CHECKLIST

TRANSACTION	APPLICATION REQUIREMENTS
Change to Licensed Entity Name	☐ Complete DBPR ABT-6004 Division of Alcoholic Beverages and Tobacco Application for Change to Licensed Entity ☐ Manufacturers and wholesale distributors of alcoholic beverages must complete and submit the DBPR ABT-6032 Surety Bond form ☐ Submit Right of Occupancy
Change to Related Parties	☐ Complete DBPR ABT-6004 Division of Alcoholic Beverages and Tobacco Application for Change to Licensed Entity ☐ Submit fingerprint receipt, if applicable. ☐ Copy of the Arrest Disposition, if applicable. ☐ Submit Mitigation for Moral Character, if applicable

**DBPR ABT-6004 – Division of Alcoholic Beverages and Tobacco
Application for Change to a Licensed Legal Entity**

**STATE OF FLORIDA
DEPARTMENT OF BUSINESS AND PROFESSIONAL REGULATION**

**DBPR Form
ABT-6004
Revised 08/2013**

If you have any questions or need assistance in completing this application, please contact the Department of Business and Professional Regulation or your local district office. Please submit your completed application to your local district office. This application may be submitted by mail, through appointment, or it can be dropped off. A District Office Address and Contact Information Sheet can be found on AB&T's page of the DBPR web site at the link provided below.

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SECTION 1 - CHECK TRANSACTION REQUESTED			
Transaction Type:			
☐ Change to Related Parties			
☐ Amendment to Licensed Entity Name			
☐ Conversion or Merger			
☐ Change of Mailing Address			
SECTION 2 – LICENSE INFORMATION			
If the applicant is a corporation or other legal entity, enter the name and the document number as registered with the Florida Department of State Division of Corporations on the line below.			
FEIN #		Business Telephone Number	
		E-Mail Address (Optional)	
Current Name of Licensee: (This is the owner name the license(s) is currently issued in)			
Full Name of Applicant: (This is the owner name the license will be issued in)			Department of State Document #
Mailing Address (Street or P.O. Box)			
City		State	Zip Code
Contact Person - This section is optional, see application instructions for details			
Contact Person		Telephone Number	
		ext.	
E-Mail Address (Optional)			
Mailing Address (Street or P.O. Box)			
City		State	Zip Code
Is this change due to a revocation proceeding?			
☐ Yes ☐ No			
If yes, is there any personal relationship to any of the former related parties?			
☐ Yes ☐ No			
If yes, explain the relationship:			

ABT District Office Received / Date Stamp

SECTION 3 – RELATED PARTY PERSONAL INFORMATION						
This section must be completed for <u>each</u> person directly connected with the business, unless they are a current licensee.						
1.	Business Name (D/B/A)					
2.	Full Name of Individual					
	Social Security Number*			Home Telephone Number		Date of Birth
	Race	Sex	Height	Weight	Eye Color	Hair Color
3.	Are you a U.S. citizen? ☐ Yes ☐ No If no, immigration card number or passport number:					
4.	Home Address (Street and Number)					
	City				State	Zip Code
5.	Do you currently own or have an interest in any business selling alcoholic beverages, wholesale cigarette or tobacco products, or a bottle club? ☐ Yes ☐ No If yes, provide the information requested below. The location address should include the city and state.					
	Business Name (D/B/A)				License Number	
	Location Address					
6.	Have you had any type of alcoholic beverage , or bottle club license, or cigarette, or tobacco permit refused, revoked or suspended anywhere in the past 15 years? ☐ Yes ☐ No If yes, provide the information requested below. The location address should include the city and state.					
	Business Name (D/B/A)				Date	
	Location Address					
7.	Have you been convicted of a felony within the past 15 years? ☐ Yes ☐ No If yes, provide the information requested below and provide a Copy of the Arrest Disposition , as requested in the Application Requirements checklist.					
	Date		Location			
	Type of Offense					
8.	Have you been convicted of an offense involving alcoholic beverages or tobacco products anywhere within the past 5 years? ☐ Yes ☐ No If yes, provide the information requested below and provide a Copy of the Arrest Disposition , as requested in the Application Requirements checklist.					
	Date		Location			
	Type of Offense					

SECTION 4 – SALES TAX
TO BE COMPLETED BY THE DEPARTMENT OF REVENUE

Full Name of Applicant _____

The named applicant for a license/permit has complied with the Florida Statutes concerning registration for Sales and Use Tax.

1. This is to verify that the current owner as named in this application has filed all returns and that all outstanding billings and returns appear to have been paid through the period ending _____ or the liability has been acknowledged and agreed to be paid by the applicant. This verification does not constitute a certificate as contained in Section 213.758 (4), F.S. (Not applicable if no transfer involved).
2. Furthermore, the named applicant for an Alcoholic Beverage License has complied with Florida Statutes concerning registration for Sales and Use Tax, and has paid any applicable taxes due.

Signed _____ Date _____

Title _____ Department of Revenue Stamp

SECTION 5 – DISCLOSURE OF INTERESTED PARTIES

Note: Failure to disclose an interest, direct or indirect, could result in denial, suspension and/or revocation of your license. You **MUST** list all persons and entities in the entire ownership structure. **To determine which of those persons must submit fingerprints and a Related Party Personal Information, sheet, see the fingerprint section in the application instructions.**

Business Name (D/B/A)

1. When applicable, complete the appropriate section below. **Attach extra sheets if necessary.**

Title/Position	Name	Stock %
CORPORATION – List all officers, directors, and stockholders		
GENERAL PARTNERSHIP – List all general partners		
LIMITED LIABILITY COMPANY – List all managers (member & non-member), directors, officers, and members		
LIMITED PARTNERSHIP – List all general and limited partners.		
LIMITED LIABILITY PARTNERSHIP – List all partners		

Bar Manager (Fraternal Organizations of National Scope only):

OTHER INTERESTS

These questions must be answered about this business for every person or entity listed as the applicant

1. Are there any persons or entities not disclosed who have loaned money to the business?	☐ Yes ☐ No
2. Are there any persons or entities not disclosed that derive revenue from the license solely through a contractual relationship with the licensee, the substance of which is not related to the control of the sale of alcoholic beverages, or is exempt by statute or rule?	☐ Yes ☐ No
3. Are there any persons or entities not disclosed that have the right to receive revenue based on a contractual relationship related to the control of the sale of alcoholic beverages?	☐ Yes ☐ No
4. Are there any persons or entities not disclosed who have a right to a percentage payment from the proceeds of the business pursuant to the lease?	☐ Yes ☐ No
5. Are there any persons or entities not disclosed who have guaranteed the lease or loan?	☐ Yes ☐ No
6. Are there any persons or entities not disclosed who have co-signed the lease or loan?	☐ Yes ☐ No
7. Is there a management contract, franchise agreement, or concession agreement in connection with this business?	☐ Yes ☐ No
8. Have you or anyone listed on this application, accepted money, equipment or anything of value in connection with this business from any industry member as described in 61A-1.010, Florida Administrative Code?	☐ Yes ☐ No

If you answered yes to any of the above questions, a copy of the agreement must be submitted with this application. The terms of the agreement may require the interested persons or parties related to an entity to submit fingerprints and a related party personal information sheet.

SECTION 6 – APPLICANT ENTITY FELONY CONVICTION

Full Name of Applicant

Has the applicant entity been convicted of a felony in this state, any other state, or by the United States in the last 15 years?

☐ Yes ☐ No

If the answer is "Yes," please list all details including the date of conviction, the crime for which the entity was convicted, and the city, county, state and court where the conviction took place.

(Attach additional sheets if necessary)

**SECTION 7 - AFFIDAVIT OF APPLICANT
NOTARIZATION REQUIRED**

Full Name of Applicant _____

"I, the undersigned individually, or on behalf of a legal entity, hereby swear or affirm that I am duly authorized to make the above and foregoing application and, as such, I hereby swear or affirm that the attached sketch is a true and correct representation of the entire area and premises to be licensed and agree that the place of business, if licensed, may be inspected and searched during business hours or at any time business is being conducted on the premises without a search warrant by officers of the Division of Alcoholic Beverages and Tobacco, the Sheriff, his Deputies, and Police Officers for the purposes of determining compliance with the beverage and retail tobacco laws."

"I swear under oath or affirmation under penalty of perjury as provided for in Sections 559.791, 562.45 and 837.06, Florida Statutes, that the foregoing information is true and that no other person or entity except as indicated herein has an interest in the alcoholic beverage license and/or tobacco permit, and all of the above listed persons or entities meet the qualifications necessary to hold an interest in the alcoholic beverage license and/or tobacco permit."

STATE OF _____

COUNTY OF _____

APPLICANT NAME/ AUTHORIZED REPRESENTATIVE

APPLICANT SIGNATURE/ AUTHORIZED REPRESENTATIVE

The foregoing was () Sworn to and Subscribed Before me this _____ Day

of _____, 20____, By _____ who is () personally
(print name(s) of person(s) making statement)

known to me OR () who produced _____ as identification.

Notary Public Commission Expires: _____

SECTION 8 - CURRENT LICENSEE UPDATE DATA SHEET

This section is to be completed for all **current** alcoholic beverage and/or tobacco license holders listed on the application to ensure the most up to date information is captured.

Full Name of Applicant

Last Name	First	M.I.
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Current Alcohol Beverage and/or Tobacco License Permit/Number(s)

Date of Birth	Social Security Number*
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Street Address

City	State	Zip Code
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Last Name	First	M.I.
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Current Alcohol Beverage and/or Tobacco License Permit/Number(s)

Date of Birth	Social Security Number*
---------------	-------------------------

Street Address

City	State	Zip Code
------	-------	----------

Last Name	First	M.I.
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Current Alcohol Beverage and/or Tobacco License Permit/Number(s)

Date of Birth	Social Security Number*
---------------	-------------------------

Street Address

City	State	Zip Code
------	-------	----------

Last Name	First	M.I.
-----------	-------	------

Current Alcohol Beverage and/or Tobacco License Permit/Number(s)

Date of Birth	Social Security Number*
---------------	-------------------------

Street Address

City	State	Zip Code
------	-------	----------

Last Name	First	M.I.
-----------	-------	------

Current Alcohol Beverage and/or Tobacco License Permit/Number(s)

Date of Birth	Social Security Number*
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Street Address

City	State	Zip Code
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